

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
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Counterfactual Mandate After Untimely Dismissal

Filed: April 1, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Mandate transmitting dismissal for an untimely notice.

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

The Court entered judgment on March 11, 2026 dismissing this appeal for lack of jurisdiction. The notice of appeal was filed March 9, three calendar days after the March 6 deadline. No extension, reopening, or tolling order altered the filing period.

No timely petition for rehearing followed the judgment. The fourteen-day rehearing period expired March 25, and the additional seven-day interval prescribed for mandate issuance expired today. This mandate is issued under Federal Rule of Appellate Procedure 41.

The appellate court did not reach the merits of Asterglen's contract claim, did not construe Section 9.2, and did not disturb the district court's Rule 54(b) judgment. Each side bears its own appellate costs as directed in the judgment.

Issuance ends this attempted appeal without converting the jurisdictional dismissal into approval of the district court's contract analysis.

Certification and Return

The Clerk certifies to the United States District Court for the Northern District of West Virginia that the appeal has been DISMISSED FOR LACK OF JURISDICTION. The district court's February 4, 2026 partial judgment on Count I remains effective. No merits remand instruction accompanies this mandate.

Narrowed Count II against Meridian Silt remains pending and may proceed according to the district court's schedule. Copper Kestrel's former amended counterclaim remains dismissed with prejudice. The jurisdictional dismissal neither expands nor limits the surviving claim beyond the January 28 stipulation.

The district clerk shall docket this mandate in Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED. The parties must direct any further district filing to that isolated docket and may not treat this mandate as an affirmance of the summary-judgment reasoning. Its effect is limited to ending the attempted appeal after an untimely notice.

Issued April 1, 2026 under the seal of the Court.

Clerk, United States Court of Appeals for the Fourth Circuit Authorized clerk designation